



STANDING ORDER NO.L&O/19/2024

GUIDELINES FOR INITIATING ACTION AGAINST FALSE COMPLAINTS.

INTRODUCTION

Sometimes false complaints are made with a motive to use the police to wreak vengeance on their opponents or settle personal scores. False complaints are also made to claim insurance money by cooking up false stories of theft, robberies, and fires or for grabbing properties. There are many other reasons for filing false complaints and FIRs with police. In such cases, it is the duty of police to probe carefully, find out the truth and ensure that no innocent person gets unnecessarily harassed.

ACTION BY POLICE IN SUCH CASES

- 1) When a false FIR is registered: After concluding the investigation in such cases, the final report should be submitted u/s 193 BNSS to the court and in the final report itself, the court may be requested to institute proceedings u/s 217/248 BNS against the complainant who had got a false case registered by giving misleading facts.
- 2) When a hoax call is made: When it becomes clear on enquiry that a hoax call has been made deliberately and maliciously, an enquiry report, along with relevant evidence, should be submitted to the concerned court for institution of proceedings u/s 217/248 BNS against the offender. On being satisfied with the police report and available evidence, the court may issue notice to the offender or order the police to register a case against the offender and investigate the same.
- 3) When a false/bogus PCR call is made: When after enquiry it is clear that the complainant has made a false/bogus PCR which he knows or believes to be false, intending thereby to cause, or knowing it to be likely that he will thereby cause annoyance to any person by misusing the police machinery or thereby put strain on the resources of the police and other agencies causing inconvenience to public. In such cases, the court may be requested to institute proceeding u/s 217/248 BNS against the complainant who has made the false PCR call.

- 4) When a false complaint is made: When after enquiry or during enquiry it becomes clear that the complainant has filed a false complaint which he knows or believes to be false, intending thereby to cause, or knowing it to be likely that he will thereby cause annoyance or injury to any person by misusing the police machinery. In such cases, the court may be requested to institute proceeding u/s 217/248 BNS against the complainant who has made the false complaint.

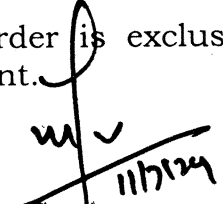
All investigating officers and supervisory officers should meticulously ensure compliance of these guidelines while initiating action against false complaints or hoax calls.

SUPERSESSSION CLAUSE

This Standing Order supersedes the previous Standing Order No. L&O/19/2022 issued vide No. 5501-5650/Record Branch/PHQ dated 18.02.2022.

DISCLAIMER

It is made clear that this Standing Order is exclusively for internal smooth functioning of Police Department.


(SANJAY ARORA)
COMMISSIONER OF POLICE:
DELHI.

No. 2651-2800 /Record Branch/PHQ, dated Delhi the 11/7/24.

Copy forwarded to:-

1. All Special Commissioners of Police, Delhi.
2. All Joint Commissioners of Police, Delhi including Jt. Director, Delhi Police Academy, Delhi/New Delhi.
3. All Additional Commissioners of Police, Delhi.
4. OSD to CP, Delhi.
5. All Deputy Commissioners of Police, Distt./Units including PHQ, CP Sectt., FRRO and Deputy Director/Delhi Police Academy, Delhi/New Delhi.
6. DCP/IT(PHQ) with the direction to upload the Standing Order in Intra DP Net.
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